

24SMCV00068 24SMCV00068

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Division: Civil Law and Motion

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TENTATIVE RULING

September 17, 2026 [continued from August 20, 2026]

24SMCV00068 (Huttar v. Uber Technologies, Inc.) Related Case: 26SMCP00144

RELEVANT BACKGROUND

On January 5, 2024, Shau Huttar (Plaintiff) filed his complaint against Uber Technologies Inc. (Uber) alleging one cause of action for libel per se.

On May 14, 2024, the Court granted Uber's motion to compel arbitration.

On March 5, 2026, the appointed arbitrator, Hon. Elizabeth R. Feffer (Ret.) of ADR, issued a final arbitration award against Plaintiff and in favor of Uber. (Ex. 3.)

INSTANT MOTION

On April 24, 2026, Uber filed the instant petition to confirm arbitration award. Plaintiff filed an opposition in the related cases, 26SMCP00144. Uber filed a reply.

On March 23, 2026, Plaintiff filed a

motion to vacate the award in the related case. Uber filed an opposition, and Plaintiff filed a reply.

On August 20, 2026, the Court continued the hearing on the instant motion to September 17, 2026.

DISCUSSION

After an arbitration award has been made, any party may petition the court to confirm, correct, or vacate the award. (Code Civ. Proc. § 1285.) A petition to confirm arbitration is required to include: (a) the substance of or attach a copy of the agreement to arbitrate; (b) the names of the arbitrators; and (c) a copy of the arbitration award and written opinion of the arbitrator. (Id., § 1285.4.) A response to the petition can request that the court dismiss, vacate, correct, or confirm the award. (Id., § 1285.2) If a petition to confirm is duly served and filed; and, unless a petition to correct or vacate the award has been timely filed, “the court shall confirm the award as made, whether rendered in this state or another state.” (Id. at § 1286.)

“A petition to confirm an award shall be served and filed not later than four years after the date of service of a signed copy of the award on the petitioner. A petition to vacate an award or to correct an award shall be served and filed not later than 100 days after the date of the service of a signed copy of the award on the petitioner.” (Id., subd. 1288.) “No petition may be served and filed under this chapter until at least 10 days after service of the signed copy of the award upon the petitioner.” (Id., § 1288.4.)

“A proceeding under this title in the courts of this State is commenced by filing a petition. Any person named as a respondent in a petition may file a response thereto. The allegations of a petition are deemed to be admitted by a respondent duly served therewith unless a response is duly served and filed. The allegations of a response are deemed controverted or avoided.” (Id., § 1290.)

“Once a petition to confirm an award is filed, the superior court must select one of only four courses of action: it may confirm the award, correct and confirm it, vacate it,

or dismiss the petition.” (EHM Productions, Inc. v. Starline Tours of Hollywood, Inc. (2018) 21 Cal.App.5th 1058, 1063.) “It is well settled that the scope of judicial review of arbitration awards is extremely narrow.” (California Faculty Assn. v. Superior Court (1998) 63 Cal.App.4th 935, 943.) “Neither the trial court, nor the appellate court, may ‘review the merits of the dispute, the sufficiency of the evidence, or the arbitrator’s reasoning, nor may we correct or review an award because of an arbitrator’s legal or factual error, even if it appears on the award’s face.’” (Ibid.) The limited grounds on which the Court may vacate an arbitration award are outlined in Code Civ. Proc. § 1286.2, subdivision (a):

“Subject to Section 1286.4, the court shall vacate the award if the court determines any of the following: ۞۞

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(1) The award was procured by corruption, fraud or other undue means. ۞۞

(2) There was corruption in any of the arbitrators. ۞۞

(3) The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator. ۞۞

(4) The arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted. ۞۞

(5) The rights of the parties were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title. ۞۞

(6) An arbitrator making the award either: (A) failed to disclose within the time

required for disclosure a ground for disqualification of which the arbitrator was then aware; or (B) was subject to disqualification upon grounds specified in Section 1281.91 but failed upon receipt of timely demand to disqualify himself or herself as required by that provision.

(Code Civ.

Proc. § 1286.2 (a)(1)-(6).)

The Court finds that Uber has complied with the relevant procedural prerequisites to confirm the award regarding the filing requirements, service of the petition, notice of the hearing, service of the award, and timeliness of the petition. (Code Civ. Proc., § 1283.6, 1285.4, 1288, 1288.4, 1290; See Petition, Ex. 1-3.)

The Court is not persuaded by Plaintiff's arguments in opposition and in the motion to vacate the award. Plaintiff argues that the arbitrator exceeded her authority, failed to resolve material issues, or refused to apply the governing law. But none of these arguments support Plaintiff's position that the arbitration award should be vacated. As Uber correctly points out in reply, there are very limited reasons under the Code of Civil Procedure that permit vacating an arbitration award. (See Code Civ. Pro. § 1286.2.) None of the permitted grounds to vacate are present here. Additionally, "the merits of a controversy that has been submitted to arbitration are not subject to judicial review. This means that we may not review the validity of the arbitrator's reasoning, the sufficiency of the evidence supporting the award, or any errors of fact or law that may be included in the award." (Harris v. Sandro (2002) 96 Cal.App.4th 1310, 1313.)

Plaintiff argues that the arbitrator applied FEHA instead of Proposition 22 or the Unruh Act. (Opp. at p. 4.). But Plaintiff asserts mere legal error, which is not a valid basis to vacate an arbitration award. Next, Plaintiff's contention that the arbitrator exceeded her powers by failing to resolve a material issue whether Uber followed its own procedures is not correct, as the arbitrator expressly evaluated Uber's actions and determined that Uber deactivated Plaintiff's driver account pursuant to its internal policies at the time after receiving a fourth report of suspected impaired driving (See Award at p. 6). But, even if that were not the case, there still would not be grounds to vacate. (See Code Civ. Pro. § 1286.2.) Similarly, Plaintiff's contention that the arbitrator failed to consider evidence about whether Plaintiff was disabled and whether Uber was aware of such alleged

disability is not correct (see Award at p. 8), and this Court may not re-assess liability or otherwise review the validity of the arbitrator's reasoning.

Accordingly, Uber's petition to confirm the arbitration award is GRANTED.

Plaintiff's petition to vacate the arbitration award is DENIED.